PROJECT LYRA

Legal and Intellectual-Property Due Diligence Report

on the HRX-218 compound family proposed to be licensed from Calderbrook Oncology Limited

Prepared for: Hartwell Pharma Limited

Prepared by: Whitfield Carter LLP, with patent input from Hartington IP

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STRICTLY PRIVATE AND CONFIDENTIAL — SUBJECT TO LEGAL PROFESSIONAL PRIVILEGE

1. Scope and basis of this report

This report sets out the findings of the legal and intellectual-property due diligence carried out by Whitfield Carter LLP, with patent-specific input from Hartington IP, in connection with the proposed exclusive licence by Calderbrook Oncology Limited (the “Licensor”) to Hartwell Pharma Limited (the “Company” or “Hartwell”) of the HRX-218 compound family (the “Licensed IP”). It is based on (i) documents made available in the Project Lyra data room hosted on Intralinks as at 8 January 2026; (ii) the Licensor’s replies to our IP enquiries dated 19 December 2025; and (iii) searches of the UK IPO, EPO, USPTO and WIPO registers conducted between 5 and 12 January 2026.

This report is addressed to Hartwell and may not be relied upon by any other person. It is subject to the assumptions and limitations in Appendix A and is qualified in its entirety by the matters to be set out in the Disclosure Schedule to the Licence. Defined terms have the meanings given in the draft Licence.

2. Executive summary

The HRX-218 estate comprises five patent families directed to the KRAS G12C inhibitor genus, specific compounds, crystalline forms, combination therapies and methods of treatment. The two foundational granted families (HRX-218-EP and HRX-218-US) appear validly granted and, subject to the chain-of-title and encumbrance points below, are owned by the Licensor with the right to grant the proposed exclusive licence.

We identified three matters that should be addressed before or at completion: (a) registration of the founder assignment and release of an existing charge over the patents; (b) a pending third-party observation against a divisional application; and (c) one third-party patent identified in the freedom-to-operate review. None of these, in our view, is a deal-breaker, but each should be reflected in the Disclosure Schedule and, where appropriate, in the conditions to completion. Our risk ratings are summarised below.

Area	Finding	Risk
Chain of title	Founder assignment recorded; one historic recordal to confirm at EPO/USPTO.	Low
Encumbrances	Fixed charge to Aldridge Seed LP; conditional release agreed.	Low / managed
Validity	Granted parent claims robust; one divisional under observation.	Low–Medium
Freedom to operate	One relevant third-party patent (EP'318), expiring 2027.	Low
Existing licences	Academic research-only licence to University of Cambridge.	Low
Grant funding	Innovate UK grant; no reach-through.	Low

3. The Licensed Patents

The Licensed Patents comprise the five families listed below. The HRX-218-EP and HRX-218-US families are granted; the remaining families include granted and pending rights across the principal pharmaceutical markets.

Family	Jurisdiction	Number	Subject	Status / expiry
HRX-218-EP	EP (UK, DE, FR, IT, ES)	EP3187502 B1	Genus — KRAS G12C inhibitors	Granted / 2036
HRX-218-US	US	US 10,894,771 B2	Compounds	Granted / 2036
HRX-218-EP-DIV1	EP	EP19 204 118.6	Crystalline forms	Pending
HRX-218-PCT2	JP, CN, CA, AU	PCT/GB2022/051337	Combinations	National phase / 2042
HRX-218-US-CIP	US	US 17/889,204	Dosing / methods	Pending

We reviewed the prosecution histories of the two granted families. The granted claims of EP3187502 B1 survived examination over the closest prior art (WO 2014/… cited by the examiner) and we are not aware of any post-grant opposition having been filed within the nine-month window, which has now expired.

4. Ownership and chain of title

The Licensed IP originates from work carried out by the Licensor's scientific founder, Dr Marianne Leitner, and colleagues. The chain of title is: (i) Dr Leitner and co-inventors → the Licensor, by an assignment dated 14 March 2019 (data room 3.1), which on its face validly assigns the inventions and the right to claim priority; and (ii) recordal of that assignment at the EPO (completed 2 May 2019) and the USPTO (completed 11 June 2019).

We confirmed the EPO and USPTO recordals from the public registers. We recommend that the Licensor warrant the chain of title (clause 9.2) and that the founder assignment and recordal confirmations be listed in the completion checklist. We have seen nothing to suggest any competing claim of ownership.

5. Encumbrances

Our register searches and the data room (folder 5) disclose a fixed charge over the Licensor's intellectual property granted to Aldridge Seed LP under a debenture dated 9 July 2020 in connection with the Licensor's seed financing. The grant of an exclusive licence over charged assets requires the chargeholder's consent or release.

The Licensor has agreed a conditional deed of release of the charge over the Licensed Patents, conditional on completion of the Licence (data room 5.5). We recommend that delivery of an executed, unconditional release be a condition to (or deliverable at) completion, and that the warranty in clause 9.3 (no encumbrances) be given subject to disclosure of the charge pending release.

6. Validity and the pending observation

A third-party observation was filed at the EPO against the divisional application HRX-218-EP-DIV1 (crystalline forms) on 21 November 2024. Hartington IP has reviewed the observation and the cited art and advises (opinion of 12 December 2024, data room 3.7) that it is directed only at the polymorph claims of the divisional and does not affect the granted genus or compound claims, which provide the core protection for HRX-218. We concur that the observation does not materially affect the value of the licence, but the divisional's outcome should be monitored under the prosecution provisions in clause 6.

7. Freedom to operate

Hartington IP conducted a freedom-to-operate review (report of 8 January 2026, data room 6.1). It identified one potentially relevant third-party patent, EP'318 in the name of Verrane Biosciences, directed to a class of covalent KRAS binders. Hartington IP considers that, on a proper construction, the HRX-218 lead compound falls outside the claims of EP'318, and in any event EP'318 expires in 2027, before any Licensed Product is expected to reach the market. We rate freedom-to-operate risk as low but recommend a confirmatory FTO opinion before first commercial launch.

8. Existing licences and third-party rights

The Licensor has granted a non-exclusive, research-only licence to the University of Cambridge under a Material Transfer and Research Licence dated 1 February 2021 (data room 4.2), limited to non-commercial academic research and expressly excluding commercial exploitation in the Field. This does not conflict with the proposed exclusive licence. The early medicinal-chemistry programme received an Innovate UK grant (ref 104772, completed 2018); the grant terms contain no continuing IP reach-through or march-in rights.

9. Recommendations

• Make delivery of the executed, unconditional release of the Aldridge Seed charge over the Licensed Patents a deliverable at completion.

• List the founder assignment and EPO/USPTO recordal confirmations on the completion checklist; obtain the Licensor's chain-of-title warranty (clause 9.2).

• Disclose the pending EPO observation against the divisional, and the EP'318 third-party patent, in the Disclosure Schedule.

• Take a confirmatory freedom-to-operate opinion before first commercial launch.

• Ensure the Licensee controls prosecution and maintenance of the granted families post-completion (clause 6.1).

Appendix A — Assumptions and limitations

This report is based on the documents and registers identified in section 1 and on the assumption that they are complete, accurate and unamended. We have not conducted technical or scientific verification of the patents' subject-matter, nor advised on the commercial or regulatory merits of HRX-218. Patent validity and infringement are ultimately questions for the courts. This report speaks as at its date and we are under no obligation to update it.